

M/S Pioneer Fabcon (P) Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 May 2023 · 2023:AHC:117915-DB · WRIT - C No. 18267 of 2023 · **Disposed; final assessment directed under the Supply Code after the objection.**

HEADNOTE

A writ against a notice of provisional assessment does not call for interference where the consumer has already objected and the final assessment is still to be made. The assessing authority must pass that final order after considering the objection and any amount already deposited, strictly under the procedure in the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

M/S Pioneer Fabcon (P) Ltd. filed a writ challenging the notice of provisional assessment dated 15 October 2022 issued by respondent no. 3. The company had already lodged an objection against that notice. When the petition was heard, the assessing authority had still not passed a final assessment order. Counsel for respondent no. 2 was present when the order was made.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

provisional assessment before the final order

HOLDING

Where the consumer has already objected to a notice of provisional assessment and no final assessment order has yet been passed, no occasion arises to interfere at that stage. Respondent no. 3 must pass the final assessment after considering the objection, strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005, and must take into account any amount already deposited. ¶ 2-4

FLAG No numbered clause; the order refers only to the procedure prescribed under the U.P. Electricity Supply Code, 2005.

PRINCIPLE TAGS

UP-2005::procedure The Court declined to examine the provisional assessment notice because the objection was already on record and the final assessment was still pending, and directed respondent no. 3 to decide it under the Supply Code after adjusting sums already deposited. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE PROVISIONAL ASSESSMENT NOTICE DATED 15 OCTOBER 2022

Left to respondent no. 3 in the final assessment after considering the objection and deposits. ¶ 2-4